

After Recording Return to:

Barnhisel Barlow & Stephens, P.C.
123 NW 7th Street
Corvallis OR 97330

BENTON COUNTY, OREGON		2023-636936
DE-AMD		05/31/2023 03:24:38 PM
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\$105.00	\$11.00 \$10.00 \$62.00 \$20.00	\$213.00
\$5.00		
I, James V. Morales, County Clerk for Benton County, Oregon, certify that the instrument identified herein was recorded in the Clerk records.		
James V. Morales - County Clerk		

FIRST AMENDED AND RESTATED PROTECTIVE COVENANTS, CONDITIONS,
DECLARATIONS AND RESTRICTIONS
FOR
TIMBER HILL NO. 1 & TIMBERHILL FIRST ADDITION

DECLARATION OF COVENANTS, CONDITIONS, DECLARATIONS AND
RESTRICTIONS FOR TIMBERHILL HOMEOWNERS ASSOCIATION

FIRST AMENDED AND RESTATED PROTECTIVE COVENANTS, CONDITIONS,
DECLARATIONS
AND RESTRICTIONS

for

TIMBER HILL NO. 1 & TIMBERHILL FIRST ADDITION

Benton County, Oregon

WHEREAS, pursuant to ORS 94.572 and ORS 94.590, this FIRST AMENDED AND RESTATED PROTECTIVE COVENANTS, CONDITIONS, DECLARATIONS AND RESTRICTIONS (this DECLARATION), was approved by seventy five percent (75%) of the total votes in the Association. Except as amended herein, all defined terms shall retain the meaning of the original declaration and, except as amended, the original declaration is hereby restated herein.

WHEREAS, Declarant was the owner of certain real property in the County of Benton, State of Oregon, hereinafter referred to as "Said Property", more particularly described as follows:

TIMBER HILL AND TIMBER HILL FIRST ADDITION as platted in Book 7, page 8 and 9, Benton County Plat Records, Benton County Oregon, EXCEPTING THEREFROM: Lot 1, Block 1, TIMBER HILL FIRST ADDITION, Benton County Plat Records, Benton County Oregon.

WHEREAS, Declarant previously recorded at M-21554 (10/28/1970) & M-59084 (9/8/1975), records of Benton County, Oregon, those certain Protective Covenants, Conditions, Declarations and Restrictions subjecting Said Property to certain protective covenants, conditions, restrictions, reservations, easements, liens and charges for the benefit of Said Property, and its present and subsequent owners as hereinafter specified.

WHEREAS, Declarant declared that all of the Said Property was and shall be held and conveyed upon and subject to the easements, conditions, covenants, restrictions and reservations hereinafter set forth; all of which are for the purpose of enhancing and protecting the value, desirability and attractiveness of said property. These easements, covenants, restrictions, conditions and reservations shall constitute covenants to run with the land and shall be binding upon all persons claiming under them and also that these conditions, covenants, restrictions, easements and reservations shall inure to the benefit of the limitations upon all future owners of said property, or any interest therein.

NOW, THEREFORE, the Declaration is amended and restated as follows:

ARTICLE I.
DEFINITIONS

Whenever used in this Declaration, the following terms shall have the following meanings:

1. "Dwelling Unit" and "Garage" shall include both the main portion of any structure intended to be occupied by one family as a dwelling and all projections therefrom but shall not include the eaves of such structures, nor uncovered front porches or steps;
2. "Association" shall mean TIMBERHILL HOMEOWNERS ASSOCIATION, a non-profit corporation organized under the laws of the State of Oregon, its successors and assigns;
3. "Said Property" shall mean and refer to that certain real property hereinbefore described, and such additions thereto as may hereafter be brought within the jurisdiction of the Association by recorded declarations in the manner hereinafter set forth;
4. "Common Area" shall mean all real property, and appurtenances thereto, now or hereafter owned by the association for the common use and enjoyment of the members of the Association;
5. "Lot" shall mean and refer to any plot of land shown upon any recorded subdivision map of the Properties with the exception of Common Areas, and to any parcel of said property under ownership consisting of a portion of one or more of such lots and/or contiguous portions of two or more contiguous lots and upon which a dwelling has been constructed and occupied.
6. "Member" shall mean and refer to every person or entity who holds membership in the Association.
7. "Owner" shall mean and refer to the record owner (including contract sellers), whether one or more persons or entities, of all or any part of said property, excluding those having such interest merely as security for the performance of an obligation.
8. "Declarant" shall mean the original signers of the original declaration and their successors, heirs and assigns, if such successors, heirs or assigns should acquire more than one undeveloped lot or building site from the Declarant for the purpose of development.
9. "Building Site" shall mean and refer to a Lot, or to any parcel of said property under one ownership which consists of a portion of one of such lots or contiguous portions of two or more contiguous lots if a building is constructed thereon.

10. "Set back" means the minimum distance between the dwelling unit or other structure referred to and a given street or road or lot line.

11. "Area of Common Responsibility" shall mean and refer to the Common Area, together with those areas, if any, within or upon a Lot, the maintenance, repair, or replacement of which is the responsibility of the Association.

12. "Private Easements" shall mean side yard easements [, if any, as platted] used for installation of house sewers or storm drains to service adjacent lots. Owners of these adjacent lots have rights of access for maintenance and repair, and must restore landscape features and fences to the original condition. Owners of lots with private easements are responsible to repair any damage to the sewers or drains caused by their construction, landscaping, or maintenance.

13. "Public Easements" shall mean and refer to that portion of property indicated as easement on the final plat on which no structure may be built and has been placed on the property at the request of the City so they may have access to this property should the need arise. Property owners with easements may landscape, build fences, install driveways, and perform similar acts, except with respect to drainage ways, and subject to the right of the City of Corvallis to disturb such property for necessary improvements and maintenance, and further subject to the City's obligation to restore it to its original condition.

14. "Bylaws" shall refer to the Bylaws of TIMBERHILL HOMEOWNERS ASSOCIATION.

15. "Tenant" shall mean any person or one family residing in a residence within TIMBERHILL who is not an Owner or immediate family of an Owner. Tenants must follow all requirements of the Declaration, Bylaws and any Rules and Regulations. Tenants shall be presented a copy of the Declaration by the Owner or Property Management Company. Tenants shall agree and sign a copy of the Declaration. Signed copies of the Declaration shall be submitted to the Association.

16. "TIMBERHILL" shall mean all property including all lots and Common Areas within the plats of Timber Hill and Timber Hill First Addition excepting Lot 1 Block 1 of Timber Hill First Addition, together with any additional property that may be platted, or by means of Supplemental Declaration and Plats operating under the laws of the State of Oregon and its successors and assigns.

17. "Rental Property" means: A property within TIMBERHILL whose Owner has submitted a request to the Association for approval to rent/lease the Owner's property.

18. "ARC" shall mean the Architectural Review Committee.

19. "Board" shall mean Board of Directors of the TIMBERHILL HOMEOWNERS ASSOCIATION.

20. "Rules and Regulations" shall mean any rules and regulation formally adopted by the Board. Rules and Regulations shall be mailed to all Members and Tenants after adoption.

ARTICLE II. ANNEXATION OF ADDITIONAL PROPERTY

Real property in addition to that described in EXHIBIT A may be made subject to the jurisdiction of the Association, whereupon automatically it shall be included in any reference herein to "said property" or "said properties".

1. Annexation of additional property shall require the assent of persons entitled to cast two-thirds (2/3) of the votes of the members present in person or by written proxy and (except as provided in Section 2 below) the assent of persons entitled to cast two-thirds (2/3) of the votes of the members present in person or by written proxy at a meeting of the Association duly called for such purpose, written notice of which shall be sent to all members not less than 30 days nor more than 60 days in advance of such meeting, setting forth the purpose thereof.

2. The presence of members entitled to cast 60% of the votes of the membership shall constitute a quorum at such meeting. In the event that a quorum is not forthcoming at any such meeting, another meeting may be called, subject to the notice requirement set forth above, and the required quorum at such meeting shall be one-half of the required quorum at the preceding meeting. If the required assent is not forthcoming, no subsequent meeting shall be held for the purpose of annexing such property for sixty days from the date of the last of such meetings.

ARTICLE III. MEMBERSHIP

Every person or entity who is a record owner (including contract sellers) of a fee or undivided fee interest in any Dwelling Unit or any Lot, or Building Site located upon any part of said property shall, by virtue of such ownership, be a member of the Association. The foregoing is not intended to include persons or entities who hold an interest merely as security for the performance of an obligation. Membership shall be appurtenant to and may not be separated from ownership of any such Dwelling Unit, Lot or Building Site made subject to the jurisdiction of the Association. Such ownership shall be the sole qualification for membership, and shall automatically commence upon a person becoming such owner, and shall automatically terminate and lapse when such ownership in said property shall terminate or be transferred.

ARTICLE IV. VOTING RIGHTS

The Association shall have one class of voting membership:

Members shall be entitled to one vote for each Dwelling Unit, Lot and Building Site in which they hold the interest required for membership by Article III. When more than one person holds such interest in any Dwelling Unit, Lot or Building Site, all such persons shall be members. The vote for such Dwelling Unit, Lot or Building Site shall be exercised as they among themselves determine, or if unable to agree, they may cast fractional votes proportionate to their ownership interests, but in no event shall more than one vote be cast with respect to any one Dwelling Unit or Lot. Lots with Duplexes are entitled to two votes. The vote applicable to any of said property being sold under a contract of purchase shall be exercised by the contract vendor unless the contract expressly provides otherwise.

In order to prevent duplication of voting rights, if the Owner of a Dwelling Unit is entitled to a vote by reason of any such ownership, neither such Owner nor any other person shall be entitled to a vote by virtue of ownership of any interest in the land upon which is located the building upon which such Dwelling Unit is located.

ARTICLE V. PROPERTY RIGHTS

1. Members' Easements of Enjoyment. Every Member of the Association shall have a right and easement of enjoyment in and to the Common Areas and such easement shall be appurtenant to and shall pass with the title to every assessed Lot; subject, however, to the following provisions:

- a) The right of the Association to limit the number of members permitted to use the Common Areas;
- b) The right of the Association to charge reasonable admission fees for the use of any recreational facility situated upon the Common Areas or otherwise controlled by the Association, including, particularly, the right to charge an annual or other periodic fee for members who desire exclusive use of such facility and who are willing to pay a special fee or assessment for such use;
- c) The right of the Association, in accordance with its Articles and Bylaws, to borrow money for the purpose of improving the Common Areas and facilities and in aid thereof to mortgage said Common Areas facilities for such purposes, and the rights of any mortgages in said properties shall be subordinate to the rights of the homeowners hereunder;
- d) The right of the Association to suspend any member's voting rights and/or right to use of any of the recreational facilities owned by the Association, for any period during which any assessments against said member's property remains unpaid; and for a period not to exceed thirty (30) days for each infraction of its published rules and regulations;

e) The right of the Association to dedicate or transfer all or any part of the Common Areas to any public agency, authority, or utility for such purposes and subject to such conditions as may be agreed to by the members. No such condition or transfer shall be effective unless an instrument signed by members entitled to cast a two-thirds of the votes of the membership, if any, has been recorded in the appropriate records of Benton County, Oregon, agreeing to such dedication or transfer, and unless written notice of the proposed action is sent to every member not less than thirty (30) days nor more than ninety (90) days prior to such dedication or transfer;

2. Delegation of Use. Members may delegate, in accordance with the Rules and Regulations adopted from time to time by the Directors, their right of enjoyment to the Common Areas and facilities to the members of their family, their Tenants, or contract purchasers, provided they reside on the property.

3. Exterior Lighting. No exterior lighting fixture (other than standard fixtures approved by the ARC) shall be installed within or upon any Residential Lot without adequate and proper shielding of the fixture. No lighting fixture shall be installed that may become an annoyance or a nuisance to owners or occupants of adjacent properties. All modifications of exterior lighting must be approved in writing by the ARC Committee, in advance.

4. Use of Lots. Except as may be otherwise expressly provided in this Declaration, each Lot shall be used for residential purposes only as a residence. Lease or rental of a lot or any building thereon for residential purposes shall comply with this covenant so long as the lease is in compliance with this Declaration and any Rules and Regulations. Any Tenant shall in all respects abide by this Declaration and any Rules and Regulations of the Association.

5. Conducting a Business from Home: To the extent that operating a business is allowed in a home by current zoning, a business conducted from a home in Timberhill must be done in a way which is not visible to other Owners. Business signs or banners are not allowed. Regular delivery of goods by commercial trucks weighing more than 5 tons is not allowed. Customer parking associated with a business must be provided within the confines of Owner's property boundaries

ARTICLE VI. COMMON AREAS & RULES AND REGULATIONS

1. Use of Common Areas. No planting or gardening shall be done, and no fences, hedges, or walls shall be erected or maintained upon the Common Area or upon any Lot, except in accordance with the initial construction of the improvements located thereon or as approved by the Board or their designated representatives. Except for the right of ingress and egress, the Owners of Lots may use the property outside their respective Lots only in accordance with

reasonable regulations as may be adopted by the Board or as is expressly provided herein. It is expressly acknowledged and agreed by all parties that this Section is for the mutual benefit of all Owners and is necessary for the protection of all Owners. Declarant shall not be responsible for Common Area maintenance. The Association shall maintain all Common Areas.

2. Rules and Regulations. The Board may establish reasonable Rules and Regulations concerning the use of the Common Area, facilities located thereon, and individual Lots. Copies of such Rules and Regulations and amendments thereto shall be furnished by the Association to all Owners prior to the rules' effective date. Such Rules and Regulations shall be binding upon the Owners, their families, Tenants, guests, invitees, and agents until and unless they are specifically overruled, cancelled, or modified by the Board or by the Association in a regular or special meeting by the vote of members holding a majority of the total votes in the Association and by the vote of the members, so long as such membership shall exist. The Board shall have the authority to set and impose reasonable monetary fines and other sanctions, and monetary fines may be collected by lien and foreclosure. A schedule of fines shall be adopted by resolution and mailed to all Owners and Tenants of TIMBERHILL.

ARTICLE VII. COVENANT FOR ASSESSMENTS

1. Creation of the Lien and Personal Obligation of Assessments. Each Owner of any Dwelling Unit, Lot or Building Site by acceptance of a deed or contract of purchase therefor, whether or not it shall be so expressed in any such deed or other conveyance or agreement for conveyance, is deemed to covenant and agree to pay to the Association: (1) Regular annual or other regular periodic assessments or charges, (2) Special assessments for capital improvements, such assessments to be fixed, established, and collected from time to time as hereinafter provided, (3) Special assessments for paying the cost of litigating any disputes regarding this Declaration, and (4) Special assessments of fines or penalties imposed for violation of this Declaration or Rules and Regulations. The regular and special assessments (including fines or penalties), together with such interest thereon and costs of collection thereof, as hereinafter provided, shall be a charge on the land and shall be a continuing lien upon the property against which each such assessment is made. Each such assessment, together with such interest, costs and reasonable attorney's fees, shall also be the personal obligation of the person who was the Owner of such property at the time such assessment was levied. The obligation shall remain a lien on the property until paid or foreclosed, but shall not be a personal obligation of successors in title unless expressly assumed by them.

2. Purpose of Assessments. The assessments levied by the Association shall be used exclusively for the purpose of promoting the recreation, health, safety, and welfare of the residents in said property, including ensuring compliance with this Declaration, and for the improvement and maintenance of said property, any Common Areas, the services and facilities devoted to this purpose and related to the use and enjoyment of the Common Areas, and of the Dwelling Units situated upon said property and including, without being limited thereto, the payment of taxes and insurance on all or any part of said property.

3. Basis and Maximum Annual Assessments. From and after January 1 of the year immediately following the conveyance of the first Lot or Dwelling Unit to an Owner, the maximum monthly assessment may be increased effective January 1 of each year, beginning January 1, 1971, without a vote of the membership in conformance with the rise, if any, of the Consumer Price Index (published by the Department of Labor, Washington, D. C., or successor U. S. Governmental agency, U. S. city average) from July of the year in which these covenants are recorded to July of the year preceding the year in which such increase becomes effective.

a) From and after January 1 of the year immediately following the conveyance of the first Lot to an Owner, the maximum monthly assessment may be increased above that determined by reference to the Consumer Price Index, as aforesaid, by a vote of the members, provided that any such increase shall be approved by the affirmative vote of not less than two-thirds of the members who are voting in person or by proxy, at a meeting duly called for this purpose, written notice of which shall be sent to all members not less than 30 days nor more than 60 days in advance of the meeting setting forth the purpose of the meeting. The limitations hereof shall not apply to any change in the maximum flat charge and basis of the assessments undertaken as an incident to a merger or consolidation in which the Association is authorized to participate under its Articles of Incorporation.

b) After consideration of current maintenance costs and future needs of the Association, the Board may fix a regular flat assessment upon a monthly, quarterly, or annual basis at an amount not in excess of the maximum specified above.

c) If any Owner should fail to keep and maintain properly the exterior of any building or lot or the exterior of any common or other area said property owned or maintained by said Owner in good condition, or if any part of said property becomes damaged or destroyed, then the Association, after giving said Owner reasonable written notice (by Certified or Registered Mail with return receipt requested, quoting a copy of this paragraph), may enter upon said property and perform said maintenance and assess the reasonable cost thereof to said Owner, such assessment shall be added to the regular assessment and become a lien and enforceable in the same manner. Disputes concerning the enforcement of this provision and the necessity of such maintenance or replacement shall be arbitrated by an arbitrator to be mutually agreed upon by the parties, or if the parties are unable to agree, then as appointed by the Circuit Court of the State of Oregon for Benton County or other court of appropriate jurisdiction.

4. Special Assessments. In addition to the annual assessments, and the assessment of fines for violations, the Association may levy in any assessment year, a special assessment applicable to that year only, for the purpose of: 1) paying the cost of litigating disputes; 2)

making emergency repairs outside Capitol Funds, and 3) defraying, in whole or in part, the cost of any construction or reconstruction, unexpected repair or replacement of a described capital improvement upon the Common Areas, including the necessary fixtures and personal property related thereto, provided that, except for repairs or replacements, any such assessment for structural alterations, capital additions or capital improvements reflecting an expenditure of in excess of \$500.00 shall require the assent of a two-thirds (2/3) majority of the votes of members who are voting in person or by proxy at a meeting duly called for this purpose, written notice of which shall be sent to all members not less than thirty (30) days nor more than sixty (60) days in advance of the meeting setting forth the purpose of the meeting.

5. Uniform Rate of Assessment. Both regular periodic flat charges and any special assessments (except those levied pursuant to Paragraph 4 (c) above, or fines for violations) must be fixed at a uniform rate for all Dwelling Units, Lots and Building Sites, and may be collected on an annual, quarterly, or monthly basis in the discretion of the Directors; except that assessments may be levied applicable to some Lots only with prior consent by the Owners of such lots if such procedure is considered equitable in the discretion of the Board in order to construct facilities to be available only to the members desiring to pay for the cost thereof. To avoid any doubt, Owners of Lots with duplexes are responsible for paying dues on each side (Dwelling Unit) of the duplex.

6. Quorum For Any Action Authorized Under Sections 3 and 4. At the first meeting called, as provided in Sections 3 and 4 hereof, the presence at the meeting of members or of proxies entitled to cast sixty percent (60%) of all the votes shall constitute a quorum. If the required quorum is not forthcoming at any meeting, another meeting may be called, subject to the notice requirement set forth in Section 3 and 4, and the required quorum at such subsequent meeting shall be one-half of the required quorum at the preceding meeting. No such subsequent meeting shall be held more than sixty (60) days following the date of the meeting at which no quorum was forthcoming.

7. Date of Commencement of Annual Assessments and Due Dates. All Dwelling Units, and all Lots and Building Sites upon which buildings have been constructed shall be subject to the annual or monthly assessments provided for herein on the first day of the month following the date the designated park or recreation facilities are available for use by the members. The first regular assessment shall be adjusted according to the number of months remaining in the calendar year but in no event shall an assessment be levied for a period in which a Lot was not accessible from a paved street or roadway to an improved public street. The Board of Directors shall fix the amount of the regular assessment at least thirty (30) days in advance of each assessment period. Written notice of the assessment shall be sent to every Owner subject thereto. The due dates shall be established by the Board of Directors. The Association shall upon demand at any reasonable time furnish a certificate in writing signed by an officer of the Association setting forth whether the assessments on a special Lot have been paid. A reasonable

charge may be made by the Board for the issuance of these certificates. Such certificate shall be conclusive evidence of payment of any assessment therein stated to have been paid.

8. Effect of Nonpayment of Assessments: Remedies of the Association. Any assessments which are not paid when due shall be delinquent. If the assessment is not paid within thirty (30) days after the due date, the assessment shall bear interest from the date of delinquency at the rate of nine percent (9%) per annum. After the enforcement process has been completed under Article XII General Provisions (1) Enforcement, the Board will determine when to perfect its lien and direct the Secretary to file the lien in the office of the Director of Records, County Clerk or appropriate recorder of conveyances of Benton County, State of Oregon. Within ten (10) days after delinquency, a statement of the amount of any such charges or assessments, together with interest as aforesaid, which have become delinquent with respect to any Dwelling Unit, Lot or Building Site on said property, and upon payment in full thereof, shall execute and file a proper release of the lien securing the same. The aggregate amount of such assessments, together with interest, costs and expenses and a reasonable attorney's fee for the filing and enforcement thereof, shall constitute a lien on the whole Dwelling Unit, Lot or Building Site (including any undivided interest in common elements of any Dwelling Unit, Lot or Building Site in any condominium), with respect to which it is fixed from the date the note of delinquency thereof is filed in the office of said Director of Records or County Clerk, or other appropriate recording office, until the same has been paid or released as herein provided. Such lien may be enforced by said Association in the manner provided by law which respect to liens upon real property. The Owner of said property at the time said assessment is levied shall be personally liable for the expenses, costs and disbursements, including reasonable attorney's fees of the Declarant or of the Association, as the case may be, of processing and if necessary, enforcing such liens, all of which expense, costs and disbursements and attorney's fees shall be secured by said lien, including fees on appeal, and such Owner at the time such assessment is levied, shall also be liable for any deficiency remaining unpaid after any foreclosure sale. No Owner may waive or otherwise escape liability for the assessments provided for herein by non-use of the Common Areas or abandonment of the Dwelling Unit, Lot or Building Site.

9. Subordination of the Lien to Mortgages. The lien of the assessments provided for herein shall be inferior, junior and subordinate to the lien of all mortgages and trust deeds now or hereafter placed upon said property or any part thereof. Sale or transfer of any Dwelling Unit, Lot or Building Site, or any other part of said property shall not affect the assessment lien. However, the sale or transfer of any Dwelling Unit or Lot or Building Site which is subject to any mortgage, pursuant to a decree of foreclosure under such mortgage or any proceeding in lieu of foreclosure thereof, shall extinguish the lien of such assessments as to amounts thereof which became due prior to such sale or transfer; and such lien shall attach to the net proceeds of sale, if any, remaining after such mortgages and other prior liens and charges have been satisfied. No sale or transfer shall relieve such Dwelling Unit, Lot or Building Site from liability for any assessments thereafter becoming due or from the lien thereof.

10. Exempt Property. The following property subject to this Declaration shall be exempt from the assessments created herein; (a) all properties expressly dedicated to and

accepted by a local public authority; (b) any Common Areas; (c) all other properties owned by the Association; and (d) property owned by the Declarant prior to the time a Dwelling Unit or other building is constructed thereon and occupied. However, no land or improvements devoted to dwelling use shall be exempt from said assessments.

ARTICLE VIII. PARTY WALLS

1. General Rules of Law to Apply. Each wall which is built as a part of the original construction of the homes upon the properties and placed on or immediately adjacent to the dividing line between the Lots owned by different persons shall constitute a party wall, and, to the extent not inconsistent with the provisions of this Article, the general rules of law regarding party walls and liability for property damage due to negligence or willful acts or omissions shall apply thereto.

2. Sharing of Repair and Maintenance. The cost of reasonable repair and maintenance of a party wall shall be shared equally by the Owners whose Lots abut such wall.

3. Destruction by Fire or other Casualty. If a party wall is destroyed or damaged by fire or other casualty, any Owner who has used the wall may restore it, and if the other owners thereafter make use of the wall, they shall contribute to the cost of restoration thereof in proportion to such use, without prejudice, however, to the right of any such owners to call for a larger contribution from the others under any rule of law regarding liability for negligent or willful acts or omissions. The work "use" as referred to herein means ownership of a dwelling unit or other structure which incorporates such wall or any part thereof.

4. Weatherproofing. Notwithstanding any other provision of this Article, an Owner who by negligent or willful act causes the party wall to be exposed to the elements shall bear the whole cost of furnishing the necessary protection against such elements.

5. Right to Contribution Runs with Land. The right of any Owner to contribution from any other Owner under this Article shall be appurtenant to the land and shall pass to such Owner's successors in title.

6. Arbitration. Any dispute concerning a party wall or any provisions of this Article shall be arbitrated. Each party shall choose one arbitrator, and such arbitrators shall choose an additional arbitrator, and the decision shall be by a majority of all the arbitrators.

7. Encroachments. If any portion of a party wall or other part of a building or structure now or hereafter constructed upon said property encroaches upon any part of the Common Areas or upon the Lot or Lots used or designated for use by another lot Owner, an easement for the encroachment and for the maintenance of same is granted and reserved and shall exist, and be binding upon the Declarant and upon all present and future owners of any part of said property for the benefit of the present and future owners of such encroaching building or

structure for the purpose of occupying and maintaining the same; in the event a structure consisting of more than one dwelling unit becomes partially or totally destroyed or in need of repair or replacement, mutual and reciprocal easements are granted and reserved upon the Common Areas and in and upon each Dwelling Unit and Lot for the benefit of the Association and adjacent Owner or Owners to the extent reasonably necessary or advisable to make repairs and replacements; and minor encroachments resulting from any such repairs and/or replacements and the maintenance thereof are hereby granted and reserved for the benefit of the present and future Owners thereof. The easements for encroachment herein granted and reserved shall run with the land.

ARTICLE IX. ARCHITECTURAL CONTROL

1. No building, fence, wall, hedge, structure, improvement, obstruction, ornament, landscaping or planting shall be placed or permitted to remain upon any part of said property unless a written request for approval thereof containing the plans and specifications therefor, including exterior color scheme, has been approved in writing by a majority of the Architectural Committee or by its representative designated by a majority of the Committee.

2. The Board will appoint 2-4 Members to the ARC of which one member shall be a Board member. . Its decision shall be final and binding; however, applications may be resubmitted. Upon failure of the ARC or its designated representative to approve or disapprove any application for a period of ten (10) days after it has been submitted in writing, in duplicate, to the Chairman of the committee or the designated representative, said application will be deemed to have been approved if the said Chairman has signed and dated said application, acknowledging receipt thereof on a copy submitted with the original. The original members of the ARC shall serve for three years. New members shall be elected for a term of three years by majority vote of the members of the ARC. If any member of the ARC is unable or unwilling to act, the remaining members shall elect a successor to serve out of the unexpired term.

3. No member of the ARC, however created, or constituted, shall receive any compensation from the Association or make any charge for services as such.

4. The ARC nor any member thereof shall be liable to any owner, occupant, builder or developer for any damage, loss or prejudice suffered or claimed on account of any action or failure to act of the ARC or a member thereof.

5. The ARC's consent to any proposed improvement shall automatically be revoked one (1) year after issuance unless construction of the improvement has been commenced or the owner has applied for and received an extension of time from the ARC.

ARTICLE X.
EXTERIOR MAINTENANCE

Maintenance of Common Areas and Exterior Maintenance. The Association shall maintain or provide for the maintenance of the Common Areas, and in addition, the Association may, if it so desires, provide exterior maintenance upon and for each Lot subject to assessment hereunder, including, without being limited to, the following: paint, repair, replace and care for roofs, gutters, downspouts, exterior building surfaces, trees, shrubs, grass, landscaped area, walks and other exterior improvements. Such exterior maintenance shall not include glass surfaces. In the event that the need for such maintenance or repair is caused through the willful or negligent act or omission of the Owner, the Owner's family, Tenants, guests or invitees, the cost of such maintenance or repairs may, in the discretion of the Directors, be added to and become a part of the assessment to which such lot is subject, and a lien and enforceable in the same manner. Damage caused by fire, flood, storm, earthquake, riot, vandalism or other causes other than normal wear from use and the elements shall be the responsibility of each Owner and not included in any maintenance provided by the Association.

ARTICLE XI.
PROPERTY USE RESTRICTIONS

The following restrictions shall be applicable to the real property described in EXHIBIT A and shall be for the benefit of and limitations upon all present and future Owners of said property, or of any interest therein:

1. Unless written approval is first obtained from the Architectural Committee, no sign of any kind shall be displayed to public view on any building or building site on said property except one professional sign of not more than five square feet advertising the property for sale or rent, or signs used by the developer to advertise the property during the construction and sales period. If a property is sold or rented, any sign relating thereto shall be removed immediately, except that the Declarant and only Declarant or its agent may post a "Sold" sign for a reasonable period following a sale.
2. No animals, livestock or poultry of any kind shall be raised, bred or kept on any part of said property, except dogs, cats, or other household pets provided that such household pets are not kept, bred or maintained for any commercial purpose.
3. No part of said property shall be used or maintained as a dumping ground for rubbish, trash, garbage, or any other waste. No garbage, trash or other waste shall be kept or maintained on any part of said property except in a sanitary container. All incinerators or other equipment for the storage of disposal of such material shall be kept in a clean and sanitary condition.
4. An Owner shall be responsible for the conduct of any agent, employee, guest, licensee or Tenant.

5. No Trailer, camper-truck, tent, garage, barn, shack, or other out-building shall at any time be used as residence temporarily or permanently on any part of said property.

6. Parking of boats, trailers, motorcycles, trucks, truck-campers and like equipment, or junk cars or other unsightly vehicles, shall not be allowed on any part of said property nor on public ways adjacent thereto excepting only within the confines of an enclosed garage, and no portion of same may project beyond the enclosed area except under such circumstances, if any, as may be prescribed by written permit approved by the ARC. All other parking of equipment shall be prohibited except as approved in writing by the Association. Alterations to these parking regulations may be made by the Association in formally adopted Rules & Regulations.

7. It shall be the obligation of each Owner of any Lot or Building Site to keep and maintain the same, and any building now or hereafter located thereon, in proper condition, including the area between the property line and the improved portion of any abutting public curb or street, including sidewalks, if any, through an association of homeowners or otherwise, and to keep and maintain in good condition any common areas owned by any such service association or other association.

8. No Owner shall remove or otherwise alter any plant or tree or any landscaping or improvement in any Common Area or in any recreational area without the written consent of the Architectural Committee

9. No Lot, residential structure, accessory dwelling unit or similar structure capable of human habitation, located thereon, may be rented, leased, subleased or otherwise let in any form, for a period less than 90 days, including but not limited to short-term vacation rentals such as VRBO or Airbnb. A month-to-month tenancy created after a one-year lease term shall be considered compliant with this paragraph, and said lease shall continue to be subject to this Declaration. Any allowed lease shall include the following terms: "This lease is subject to that certain Declaration (CCRs) for Timberhill, including all terms and rules contained therein. Any violation of the terms of the Declaration or any Rules and Regulations shall be a violation of this Lease." GRANDFATHER RULE: If the short-term rental is permitted by the City of Corvallis, and is in existence at the time of these revised CCRs, such rental shall be allowed (grandfathered in) once the Owner has declared the short-term rental to the Board. Once the property has been sold, said short-term rental shall be prohibited. The owner shall submit a license or permit from the City or State to the board.

10. Offensive or Unlawful Conditions: No noxious or offensive activities shall be carried on upon any Lot or Common Area, nor shall anything be done or placed on any Lot or Common area which interferes with or jeopardizes the enjoyment of other Lots, Association members or the Common Areas, or which is a source of annoyance to residents. No unlawful use shall be made of a Lot or any part thereof, and all valid laws, zoning ordinances and regulations of all governmental bodies having jurisdiction thereof, shall be observed. Without

limiting the generality of the foregoing, no heat pump or other heating, ventilating or air conditioning equipment, the operation of which produces noise at a level higher than 80 decibels, as measures at the lot line, shall be allowed on any Lot or living unit.

11. The records of the Secretary of the Association shall be conclusive evidence as to all matters shown by such records and the issuance of a certificate of completion and compliance by the Secretary or Assistant Secretary of the Association showing that the plans and specifications for the improvement or other matters herein provided for have been approved, and that said improvements have been made in accordance therewith, or a certificate as to any matters relating to and within the jurisdiction of the Association by the Secretary thereof, shall be conclusive evidence that shall fully justify and protect any title company certifying, guaranteeing, or insuring title to said property, or any portion thereof, or any lien thereon and/or any interest therein as to any matters referred to in said certificate, and shall fully protect any purchaser or encumbrancer from any action or suit under this Declaration. After the expiration of one year following the issuance of a building permit therefor by municipal or other governmental authority, any structure, work, improvement or alteration shall, as to any purchaser or encumbrancer in good faith and for value and as to any title company which shall have insured the title thereof, be deemed to be in compliance with all the provisions hereof, unless a notice of non-compliance executed by the Association shall have appeared of record in the office of the County Clerk of Benton County, State of Oregon, or unless legal proceedings shall have been instituted to enforce completion or compliance.

12. Owners of Rental Property within TIMBERHILL are responsible for their Tenants' actions. Tenants shall meet the same requirements as Owners with respect to the Declaration and Rules and Regulations. Owners or their Property Management Company shall provide Tenants with copies of the Declaration and Rules and Regulations for their signature acknowledging their agreement to be bound thereby. The signed acknowledgments shall then be submitted to Board.

ARTICLE XII EASEMENTS

All conveyances of land situate in the said Property, made by the Declarant, and by all persons claiming by, through, or under the Declarant, shall be subject to the foregoing restrictions, conditions and covenants, whether or not the same be expressed in the instruments of conveyance, and each and every such instrument of conveyance shall likewise be deemed to grant and reserve, whether or not the same be declared therein, mutual and reciprocal easements over and across and under all Common Areas and over, across and under all land situate within 5 feet of the side and rear lines of each Lot or Building Site now or hereafter recorded or platted or conveyed by recorded instrument in said Property (except that the side and rear line easement shall be 10 feet along the perimeter of this subdivision), and excepting any portion of said

property which may now or hereafter be occupied by a residence shall not thereafter be subject to any easement not theretofore applied to use, for the purpose of building, constructing and maintaining thereon underground or concealed electric and telephone lines, gas, water, sewer, storm drainage lines, radio or television cables and other services now or hereafter commonly supplied by public utilities or municipal corporations, all of said easements shall be for the benefit of all present and future owners of property subjected to the jurisdiction of the Association by covenants and restrictions recorded and approved as hereinabove provided; said easements however shall not be unrestricted, but shall be subject to reasonable Rules and Regulations governing rights of use as adopted from time to time by the Board in the interests of securing maximum safe usage of said property without unduly infringing upon the rights or privacy of the Owner or occupant of any part of said property. (See also easement for encroachments specified in Article VII). Provided further that if any two or more lots or fraction of one or more lots shall be developed for one building as a single tract or building site, then said easements shall thereafter be located on the area within five (5) feet of the side and rear lines of said building site; if there has been an application to use of such easement prior to development of such lots or fraction of one or more lots to such a building site, then, subject to the approval of the Association, such easement may be relocated, but any expense involved in moving any sewer or storm lines or other utility lines shall be borne by the Owner of the lot or building site, the development of which requires movement of such lines; and a further mutual and reciprocal easement for sidewalk purposes is granted and reserved over and across the front ten (10) feet of each Lot in said property, and over all Common Areas in said property, for the purpose of constructing and maintaining and repairing sidewalks for the benefit of the residents of said property, their Tenants and guests, subject however, to rules and regulations reasonably restricting the right of use thereof for the safety and welfare of the public as may be promulgated from time to time by the Association and/or public authority. A corner lot shall be considered to have two front sides for purposes of this sidewalk easement. The "front" of a Lot shall be deemed to be only that portion of a lot abutting a public street or highway, and the sidewalk easement herein granted and reserved shall not be deemed to include a town house lot which abuts a common area or private road or driveway only and does not directly abut a public street or highway.

ARTICLE XIII. GENERAL PROVISIONS

1. Enforcement. The Association, or any Owner, or the owner of any recorded mortgage upon any part of said Property, shall have the right to enforce, by any proceeding at law or in equity, all restrictions, conditions, covenants, reservations, liens and charges now or hereafter imposed by the provisions of this Declaration. Failure by the Association or by any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter. In addition, the Association may impose fines upon the Owner and/or Tenant for violation of any part of this Declaration and/or the Rules and Regulations adopted by the Board. The Board will notify the Owner, Property Management

Company and Tenant (if applicable) of any violation following a four-part notification process. First, the Board shall send a written notice alleging any violation to the Owner, Property Management Company and Tenant (if applicable) requesting compliance within 10 days of mailing the notice; second, if the violation has not been timely cured, the Board shall send another notice to the Owner, Property Management Company and Tenant (if applicable) demanding compliance within 10 days of mailing the notice; third, if, after the second notice, the violation has not been timely cured, the Board shall send a Final Notice to the Owner, Property Management Company and Tenant (if applicable) that if the violation is not cured within 10 days, a hearing will be held at the date stated in the Final Notice. The purpose of the hearing will be to impose a scheduled fine for the violation and to give the Owner/violator the opportunity to be heard and to present evidence and/or witnesses before a fine is imposed. If the Owner/violator does not attend the hearing, the Board shall proceed with the hearing based upon the information it has. At the conclusion of the hearing, the Board will decide whether the violation has occurred and not been remedied, and if so, the Board shall impose the scheduled fine and such decision will be stated in the minutes of the meeting. A notice of the Board's decision and the fine imposed will be mailed to the Owner/violator. All notices under this section shall be sent both USPS Regular First-Class Mail and Certified Mail.

In addition to the forgoing notice and fine process, or in the alternative thereto, the Board may hire legal counsel to initiate legal proceedings against the Owner to enforce this Declaration and the Rules and Regulations.

2. Severability. Invalidation of any one of these covenants or restrictions by judgment or court order shall in no way affect any other provisions which shall remain in full force and effect.

3. Amendment. The covenants and restrictions of this Declaration shall run with and bind the land, and shall inure to the benefit of and be enforceable by the Association, or the Owners of any Lot subject to this Declaration, their respective legal representatives, heirs, successors and assigns, for a term of twenty-five (25) years from the date this Declaration is recorded, after which time said covenants shall be automatically extended for successive periods of ten (10) years. Any of the covenants and restrictions of this Declaration except the easements herein granted may be amended by an instrument approved by members entitled to cast not less than seventy-five percent (75%) of the votes of the membership. Easements herein granted and reserved shall not be amended except by instrument signed and acknowledged by one hundred percent (100%) of the Owners of the property affected, the Architectural Committee, by the Planning Commission or by the governing body of the County or other public authority having jurisdiction over the granting of building permits on the real property referred to in EXHIBIT B. All such amendments must be recorded in the appropriate Deed Records of Benton County, Oregon, to be effective. [See also easements for encroachments specified in Article VII.]

4. Insurance. The Owner of every building or dwelling unit located upon any part of said property shall at all times cause the same to be insured with broad form fire and extended coverage insurance for the full replacement value thereof, and shall upon request, cause the insurance company to furnish the Association with a certificate showing said insurance to be in effect. If any Owner fails to furnish the Association with said certificate, the Association may obtain (but it shall not be obligated to do so) such insurance with the proceeds payable to the Owner, any mortgages and to the Association as their respective interests may appear. The Association shall assess the cost of such insurance against the Owner, and such assessment shall become a lien and collectable and enforceable in the same manner as all assessments provided for herein.

5. Benefit of Provisions: Waiver. The provisions contained in this shall bind and inure to the benefit of and be enforceable by, the Association, and the Owner or Owners of any portion of said property, and their heirs and assigns, and each of their legal representatives, and failure by Declarant or by the Association or by any of the property owners or their legal representatives, heirs, successors or assigns, to enforce any of such conditions, restrictions or charges herein contained shall in no event be deemed a waiver of the right to do so.

ARTICLE XIV

RENTAL PROPERTIES

1. Residential Use: Except as may be otherwise expressly provided in this Declaration, each Lot shall be used for residential purposes; no trade or business of any kind may be conducted. Lease or rental of a lot or any building thereon for residential purposes shall not be considered to be a violation of this covenant as long as the lease has been approved by the Board and is in compliance with this Declaration and the reasonable Rules and Regulations. Any Tenant shall in all respects abide by this Declaration, the Bylaws, and all Rules and Regulations. Owners are required to provide Tenants a copy of this Declaration and any Rules and Regulations, with the Tenants signing a copy thereof, and the Owners returning said signed copies to the Association. The Association reserves the right to notify and fine both Tenants and or Owners for violations of this Declaration or the Rules and Regulations.

2. Limit on Rental Properties: No more than 15 Lots in Timberhill may include a Dwelling Unit that is rented to a non-owner. In the case of Lots that include a duplex, the rental of one side of the duplex (or both sides) shall be included in this calculation.

3. Board Approval of Rentals: Owners desiring to rent a Dwelling Unit on their Lot shall first obtain approval from the Board. Owners shall submit a request for approval which shall include a copy of the form of Lease or Rental Agreement they intend to use. The

Board will review the form and determine whether the cap allows for the rental. Owners shall submit a copy of this Declaration signed by the renter before occupancy.

4. Grandfather Rule: Rentals currently in the Association will be exempted from seeking Board approval since this rule was added to this Declaration by amendment. When the Lot with a rented Dwelling Unit is sold, the new Owner shall apply for approval prior to renting.

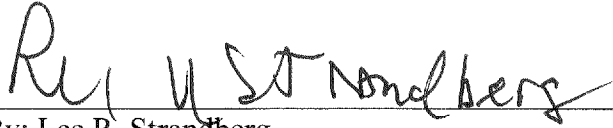
5. Exceptions: Even if the rental cap cannot be met, Owners whose jobs are transferred and require relocation or have other personal situations may request approval to rent property for 1 year with two 1-year consecutive extension requests. After the third year, the Owners must either move back into the property or sell the property unless the cap on rentals can be met at that time.

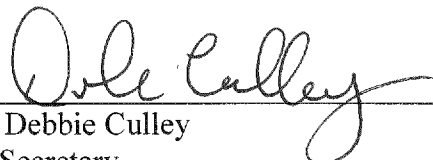
6. Owner/Renter Limits and Responsibilities: Owners are subject to the following limits and responsibilities:

- a) Owners are required to conduct background searches on Tenants to protect the Timberhill community.
- b) Owners shall include in the Lease or Rental Agreement that Tenants shall abide by this Declaration and all Rules and Regulations and attach them to the agreement.
- c) Owners who intend to sell their Lots within Timberhill shall notify potential buyers of the rules regarding rental properties contained in this Declaration.

IN WITNESS WHEREOF, we, the Owners of all property within said Property, have hereunto caused these presents to be executed this 31 day of May, 2023.

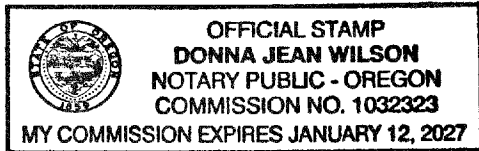
TIMBERHILL HOMEOWNERS ASSOCIATION:


By: Lee R. Strandberg
Its: President


By: Debbie Culley
Its: Secretary

STATE OF OREGON,)
)ss.
County of Benton)

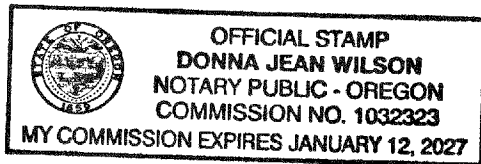
This instrument was acknowledged before me on 31, May 2023 by LEE R. STRANDBERG as President by Timberhill Homeowners Association.



Donna Jean Wilson
Notary Public for Oregon
My Commission Expires: 1/12/27

STATE OF OREGON,)
)ss.
County of Benton)

This instrument was acknowledged before me on 31, May 2023 by DEBBIE CULLEY as Secretary by Timberhill Homeowners Association.



Donna Jean Wilson
Notary Public for Oregon
My Commission Expires: 1/12/27